Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1282
Claimant:	Justin Decker
Adjuster:	Christopher Wong

01/10/2024 - Claim opened following report of a sideswipe collision during a lane change. Insured reports the other vehicle moved into their lane without signaling. Both drivers remained at scene. Police report requested. Insured's vehicle has visible damage to the right rear quarter panel.

01/13/2024 - Recorded statement taken from insured. Insured reports neck stiffness and headache following the impact and says they were evaluated at an urgent care facility. Vehicle assigned to appraiser for inspection and estimate. Liability appears disputed pending review of the other driver's account.

01/21/2024 - Claimant is now represented by counsel. All further contact to be routed through the attorney's office. Letter of representation received and filed. Request for medical records and billing issued to counsel. Claimant's injury described as whiplash with ongoing neck pain and reduced range of motion.

01/26/2024 - Appraisal received and reviewed. Repair estimate exceeds the threshold for a total loss evaluation, so the vehicle is being valued for a possible settlement rather than repair. Comparable vehicle valuation requested. Medical records received and under review for treatment timeline and consistency with reported mechanism of injury.

01/29/2024 - Liability evaluation updated after review of the police report and scene photographs. Evidence supports the other driver changing lanes into the insured's path. Bodily injury claim placed on hold pending receipt of final treatment records and itemized medical bills from counsel. Reserve adjusted. Next follow-up scheduled for review of outstanding documents.

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Recorded Statement

Claim number:	C-1282
Statement of:	Justin Decker
Taken by:	Christopher Wong
Date:	01/05/2024

Q: Thank you for agreeing to give this recorded statement. Can you please state your full name for the record?

A: I'd rather just say I'm the driver of the vehicle involved. Go ahead and ask your questions.

Q: Understood. Can you tell me where the accident occurred?

A: It was on a multi-lane road in Pearland, Texas, near a shopping center entrance. I was in the right lane and wanted to move over to the left.

Q: What were you doing right before the collision?

A: I checked my mirror, signaled, and started to change lanes. I thought the lane was clear, but a vehicle came up on my left side and we sideswiped each other.

Q: Did you see the other vehicle before you moved over?

A: Honestly, no. I glanced at the mirror but I didn't see it until the impact. It was in my blind spot.

Q: Were you able to stop or steer away?

A: I tried to correct back into my lane, but there wasn't time. Both of our cars scraped along each other for a second or two before we stopped.

Q: Did you have any injuries at the scene?

A: I felt fine at first, just shaken up. But within a day my neck was really stiff and sore, and now I have headaches and pain between my shoulders. My doctor said it looks like whiplash.

Q: Have you received any medical treatment since the accident?

A: Yes, I've been going to physical therapy three times a week and I'm taking prescribed pain medication. I'm still having trouble turning my head to the left.

Q: Did anyone else in your vehicle get hurt?

A: No, I was alone in the car.

Q: Is there anything else you'd like to add to your statement?

A: Only that I want to be clear I didn't intend to cut anyone off. I just didn't see the other car in time.

Q: Thank you. That concludes the statement.